

22PSCV00471 22PSCV00471

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Case Number: 22PSCV00471 Hearing Date: July 16, 2026 Dept: 6

CASE

NAME: David

Guzman v. Dean Edward Hines, et al.

Defendant

Dean Edward Hines' Motion to Set Aside Default

TENTATIVE

RULING

The Court DENIES Defendant Dean Edward Hines' Motion to Set Aside Default.

Plaintiff is ordered to give notice
of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a real property sale dispute. On May 17, 2022, plaintiff David Guzman (Plaintiff) filed this action. On February 24, 2025, Plaintiff filed the operative Second Amended Complaint (SAC) against defendant Dean Edward Hines (Defendant), alleging causes of action for breach of contract, conversion, fraud, and quiet title.

On April 8, 2026, after a default prove-up hearing, the Court entered judgment in favor of Plaintiff on Plaintiff's breach of contract claim. Plaintiff dismissed the quiet title claim and the Court found against Plaintiff on the conversion and fraud claims.

On June 24, 2026, Defendant moved to set aside the default judgment. On July 6, 2026, Plaintiff opposed the Motion. Defendant did not reply to the Opposition.

LEGAL

STANDARD

“The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.” (Code Civ. Proc., § 473, subd. (b).)

(a)

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against the party; or (ii) 180 days after service on the party of a written notice that the default or default judgment has been entered.

(b)

A notice of motion to set aside a default or default judgment and for leave to defend the action shall designate as the time for making the motion a date

prescribed by subdivision (b) of Section 1005, and it shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.

(c)

Upon a finding by the court that the motion was made within the period permitted by subdivision (a) and that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect, it may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action.

(Code Civ.

Proc., § 473.5, subds. (a)-(c).)

REQUEST FOR JUDICIAL NOTICE

The Court

GRANTS Plaintiff's request for judicial notice as to the court-filed documents attached to Plaintiff's Opposition. (Evid. Code, § 452, subd. (d).) However, the Court takes judicial notice only as to "the existence, content and authenticity of public records and other specified documents" and the legal effect of the documents' language when that effect is clear, it does not take judicial notice of the truth of the factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400; *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265.)

EVIDENTIARY OBJECTIONS

The Court OVERRULES Plaintiff's

evidentiary objections. The Court does not rely on the text messages in Defendant's motion in reaching its decision herein. Defendant's assertions about the wrong courthouse or purported legal conclusions regarding service are only arguments, not evidence.

PRELIMINARY

ISSUE

Defendant's moving papers are unsigned, which Defendant needs to correct promptly. (Code Civ. Proc., § 128.7, subd. (a).)

The Court notes that Defendant's motion was untimely mail served on June 23, 2026, rather than by June 18, 2026. (Proof of Service (6/23/26; Code Civ. Proc., § 1005, subd. (b).) Plaintiff's Opposition does not mention this timeliness issue, but instead acknowledges Plaintiff's own untimeliness. (Opp., p. 1.) The Court will still consider the Motion and Opposition, but admonishes the parties to comply with the Code of Civil Procedure going forward. (See Cal. Rules of Court, rule 3.1300, subd. (d); *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202.)

DISCUSSION

Summary of Arguments

Defendant argues that the default and default judgment should be set aside under Code of Civil Procedure section 473.5 because he did not receive actual notice of the lawsuit in time to defend, and his motion is timely. Defendant maintains that he was served only once between June and December 2025, and even that service was defective because it listed the wrong courthouse, named the wrong defendant, and contained no case documents. Defendant contends that he did not learn of the April 8, 2026 ruling until June 16, 2026, when he unexpectedly received documents from a third-party escrow company, leaving him no opportunity to oppose the judgment. Defendant further argues that Plaintiff failed to file valid proofs of service, with filings being rejected by the clerk. Defendants asserts that these service failures constitute grounds for dismissal or sanctions under California Rules of Court 2.30. Defendant also states he has text message evidence showing Plaintiff breached a purchase contract in November 2021, supporting his request to dismiss the civil action or at minimum quash the summary judgment.

In opposition, Plaintiff argues that Defendant's motion should be denied because Defendant received repeated personal service, including service by the Rice

County Sheriff, service in open court, and multiple mailed notices, and therefore cannot show lack of actual notice in time to defend. Plaintiff contends Defendant ignored the Court's warnings and orders to file an answer and waited until escrow required his signature before taking any action, demonstrating inexcusable neglect rather than any service defect. Plaintiff contends that relief under Code of Civil Procedure section 473, subdivision (b), is jurisdictionally barred because the six-month period expired long before Defendant filed his motion. Plaintiff also argues that Defendant has shown no meritorious defense, relying only on unauthenticated, self-serving text messages that actually corroborate Plaintiff's breach of contract claims. Plaintiff further argues that the motion is procedurally defective because Defendant failed to attach a proposed answer.

Analysis

The

Court finds Defendant's motion not well taken. As Plaintiff correctly points out, Defendant had actual notice of this action. In fact, Plaintiff was personally served with the SAC in open court on June 26, 2025, when he personally appeared in Court in this action. (Minute Order (6/26/25) ["Defendant Dean Edward Hines, as an individual and Dean Edward Hines, a trustee of LILA LEE HINES Revocable Trust is served with Plaintiff's 2nd Amended Complaint in open court"]; Proof of Service (9/22/25).) Defendant also appeared at the hearing on August 28, 2025, and the Court ordered Defendant to file a response to the SAC before the next court date. (Minute Order (8/28/25).) Defendant did not file a responsive pleading and Defendant's default was entered on September 22, 2025. (Request for Entry of Default/Judgment (9/22/25).) Defendant clearly had actual notice in time to defend the action but did not do so. (See Code Civ. Proc., § 473.5, subd. (a).) Plaintiff is therefore not entitled to setting aside the default judgment based on lack of actual notice.

Moreover,

Defendant has not shown that the judgment was entered due to Defendant's mistake, inadvertence, surprise, or excusable neglect, which are grounds for setting aside the default judgment under Code of Civil Procedure section 473, subdivision (b). (Code Civ. Proc., § 473, subd. (b).) As shown above, Defendant was personally served in open court and ordered by the Court to file a responsive pleading. (Minute Order (6/26/25); Proof of Service (9/22/25); (Minute Order (8/28/25).) Defendant was therefore fully aware of this action

and his obligation to defend himself, but Defendant failed to act in time.

Defendant's arguments ignore these facts and provide no evidence demonstrating excusable neglect.

Based on the foregoing, the Court DENIES the Motion.

CONCLUSION

The Court DENIES Defendant Dean Edward Hines' Motion to Set Aside Default.

Plaintiff is ordered to give notice
of the Court's ruling within five calendar days of this order.